

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR C61
HON. JENNIFER M. MCCARTNEY

Date: 08/21/2026

Courtroom Rules and Notices

The Court will continue to upload tentative rulings as they are completed. Please be sure to keep checking until 8:30 AM on the day of your hearing.

Written responses, oppositions, or filings that are filed later than 12:15 PM the day before the hearing on the motion will go on second call by the Court for the Court to have an opportunity to review any last-minute filings. If a party files a written response, opposition, or any filing after 12:15 PM on the day before the hearing, the party must ensure they are available for the court's afternoon calendar the day of the hearing.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5261 – both counsel need to state they are submitting on the tentative. Please do not call the Department unless all parties submit to the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling, and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

#	Case Name	Tentative
2	30-2024-01416889 BRE-FMCA, LLC vs. James	The Court has read and considered the Defendants' Motion to Seal Records of Eviction (ROA 29). The Court takes Judicial Notice of the Request for Entry of Default (ROA 20) and Judgment-Unlawful Detainer (ROA 24). The Court finds: (1) There exists an overriding interest that overcomes the right of public access to the record; (2) The overriding interest supports sealing the record; (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) The proposed sealing is narrowly tailored; and (5) No less restrictive means exist to achieve the overriding interest. Under California Rules of Court, Rule 2.550 the Court orders that this case information be sealed from the public, as the Defendants entered into a Stipulation to pay the judgment of this matter in November 2025, which occurred; there is no balance per the email from the community, and the Defendants are facing substantial hardship in finding housing.

		The Court Clerk is to SEAL the records of this case from the public and only the Defendants and Plaintiff shall have access. The Court Clerk is to provide notice of the Court's ruling.
3	30-2026-01561177 Peter Soto As Holder Of The Master Lease vs. Ortega	The Court has read and considered the Defendant's Motion to Vacate (ROA 42). The Court takes Judicial Notice of 26V000355, 7/6/3036 Minute Order (ROA 27), 7/13/2026 Minute Order (ROA 28), Complaint (ROA 2), 8/13/2026 Minute Order (ROA 46), and 8/18/2026 Minute Order (ROA 51). 26V00355 is a domestic violence restraining order case that the Plaintiff sought against the Defendant. On March 5, 2026, another judicial office denied the permanent restraining order in 26V00355. At trial in this matter on 7/6/2026, the Defendant and Plaintiff both testified that the Defendant was arrested as a result of the temporary restraining order in 26V00355. The Court's ruling on 7/13/2026 makes clear that no permanent restraining order was issued as to 26V00355. The 7/13/2026 ruling also makes clear that the Defendant did not provide evidence that she was the victim of a crime in which the Plaintiff was the perpetrator. The text message the Defendant presented as evidence showed that Plaintiff and Defendant had a past sexual relationship, which she then said she wanted to stop having. Although the Defendant now alleges in her moving papers that she was "incapacitated to defend" herself in court at the trial on July 6, 2026, no evidence supports that allegation. The Defendant was present in court and testified without issue; she may have appeared upset or demonstrated emotion during the proceedings, but she articulated her points and positions throughout. The Defendant testified at trial that she had not paid the total rent under the parties' agreement since February 2026, when she paid a portion of the rent (\$300 of \$1350). Defendant presented no evidence at trial to support her habitability claim. Therefore, judgment was entered in favor of the Plaintiff. Defendant fails to establish a legal basis to support the Motion to Vacate. The Court DENIES the Motion to Vacate. The Court Clerk is to notify the Orange County Sheriff's Department to proceed with the lockout. The Court Clerk is to provide notice of the Court's ruling.
4	30-2026-01569359 USCMF Joule La Floresta, LLC vs. Yazouri	The Court has read and considered Plaintiff's Motion to Deem Plaintiff's Request for Admissions Admitted (ROA 28) and Proof of Service (ROA 24). IT IS ORDERED that the Plaintiff's Motion to Deem Plaintiff's Request for Admissions Admitted is granted and that the truth of all specified matters, and the genuineness of all specified documents, in the Plaintiff's Request for Admission to Defendant Lubna Yazouri (Set One), propounded by Plaintiff and served on Defendant on June 26, 2026, be deemed admitted.

		Plaintiff is ordered to provide notice of the Court's ruling.
5	30-2026-01572567 Villas Aliento Partners, L.P. vs. McKeown	The Court has read and considered the Defendant's "Motion to Respond to Opposition and for Stay of Execution" (ROA 57). The Court takes Judicial Notice of the Defendant's Ex Parte Application for Stay of Execution of Judgment (ROA 55), Plaintiff's Opposition (ROA 61), 8/3/2026 Minute Order (ROA 62), Writ of Possession (ROA 53), Judgment-Unlawful Detainer (ROA 39), 7/23/2026 Minute Order (ROA 47), 7/20/2026 Minute Order (ROA 42) and 7/7/2026 Minute Order (ROA 25). In the Motion to Respond to Opposition, the Defendant attempts to relitigate the issues which were ruled on by this Court in the unlawful detainer action. An extensive trial occurred over multiple days (ROA 25 and ROA 42), resulting in the Court's decision of 7/23/2026 (ROA 47). A party appearing in propria persona does not provide a basis for special treatment under the law; "such a party is to be treated like any other party and is entitled to the same but no greater consideration than other litigants and attorneys." (<i>Barton v. New United Motor Manufacturing, Inc.</i> (1996) 43 Cal.App. 4th 1200, 1210.) Additionally, the Court of Appeal held that a litigant in propria persona is subject to the same restrictive rules of procedure as an attorney. (<i>Kabbe v. Miller</i> (1990) 226 Cal.App. 3d 93, 98.) The Defendant does not present any evidence to support a legal basis to disturb the Court's judgment of 7/23/2026. As previously indicated in the 8/3/2026 Minute Order regarding the Defendant's request for a Stay of Execution of Judgment: Pursuant to Code of Civil Procedure section 918, the Court finds that Defendant has not established the extreme hardship necessary to warrant a stay of execution of judgment. The ordinary hardship and displacement attendant to the enforcement of a writ of possession following an eviction, without additional supporting circumstances do not constitute sufficient grounds for relief under the statute. The Court DENIES the Defendant's Ex Parte Application for Stay of Execution of Judgment. The Court DENIES the Defendant's Motion to Respond to Opposition. The Court Clerk is to notify the Orange County Sheriff's Department to proceed with the lockout. The Court Clerk is to notify the parties of the Court's ruling.
6	30-2026-01581477 Gross vs. Gross	The Court has read and considered the Defendant's Demurrer to the Amended Complaint (ROA 42) and the Plaintiff's Opposition (ROA 50). The Court OVERRULES the demurrer. The Defendant is ordered to file an answer within 5 calendar days.